

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Esme Trontz	Team: Squad #02	CCRB Case #: 201909415	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 10/26/2019 2:27 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/11/2021	Precinct: 47		
Date/Time CV Reported Tue, 10/29/2019 12:31 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 10/29/2019 12:31 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Robert King	02726	952934	047 PCT
2. POM Jonathan Vasquez	11731	951370	047 PCT
3. POM Austin Hieronymi	24365	957676	PBBX SU
4. POM Andrew Distelhurst	18304	958512	047 PCT
5. POM James Stalikas	18382	959268	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jonathan Vasquez	Abuse: Police Officer Jonathan Vasquez stopped § 87(2)(b)	A . Substantiated
B . SGT Robert King	Abuse: Sergeant Robert King stopped § 87(2)(b)	B . Substantiated
C . POM Jonathan Vasquez	Abuse: Police Officer Jonathan Vasquez frisked § 87(2)(b)	C . Substantiated
D . POM Jonathan Vasquez	Abuse: Police Officer Jonathan Vasquez searched § 87(2)(b)	D . Substantiated
E . POM Andrew Distelhurst	Discourtesy: Police Officer Andrew Distelhurst spoke discourteously to § 87(2)(b)	E . Substantiated
F . POM Jonathan Vasquez	Abuse: Police Officer Jonathan Vasquez failed to provide § 87(2)(b) with a business card.	F . Substantiated
G . SGT Robert King	Abuse: Sergeant Robert King failed to provide § 87(2)(b) with a business card.	G . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
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Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed this complaint on behalf of and from the point of view of her son, § 87(2)(b) on October 29, 2019, via the CCRB website.

On October 26, 2019, at 2:27 a.m., § 87(2)(b) exited the back seat of a Lyft taxi in front of his residence at § 87(2)(b) in the Bronx. § 87(2)(b) wore a small satchel, which contained marijuana, across his body. Sergeant Robert King and Police Officers Austin Hieronymi and Jonathan Vasquez of the 47th Precinct pulled up in an unmarked vehicle behind the taxi and stopped § 87(2)(b) as he exited (**Allegations A and B: Abuse of Authority- Stop, Substantiated**). Police Officer Vasquez asked § 87(2)(b) if he had any weapons (**within Allegation A**), then frisked § 87(2)(b)'s body (**Allegation C: Abuse of Authority- Frisk, Substantiated**), searched his bag (**Allegation D: Abuse of Authority- Search of Person, Substantiated**), and allegedly searched his jacket pockets and front pants pockets (**within Allegation D**). Police Officers Andrew Distelhurst and James Stalikas of the 47th Precinct pulled up in a second car, and Police Officer Distelhurst approached § 87(2)(b). § 87(2)(b) said he was going home, and Police Officer Distelhurst said, "It doesn't matter where you're goin', you could be coming from fuckin' wherever, you're still in the wrong, bro, correct?" (**Allegation E: Discourtesy- Word, Substantiated**). Neither Police Officer Vasquez nor Sergeant King offered § 87(2)(b) their business card (**Allegations F and G: Abuse of Authority- Failure to Provide Business Card, Substantiated**). The officers released § 87(2)(b) without arresting him or issuing him a summons.

§ 87(4-b) § 87(2)(g)

Surveillance footage from § 87(2)(b) and BWC footage from Sergeant King were obtained for this incident (Board Review #03, #08). They are summarized in IAs #25 and #82, respectively (Board Review #02, #14).

Findings and Recommendations

Allegation A: Abuse of Authority- Police Officer Jonathan Vasquez stopped § 87(2)(b).

Allegation B: Abuse of Authority- Sergeant Robert King stopped § 87(2)(b).

§ 87(2)(b) provided a telephone statement to the CCRB on November 1, 2019 (Board Review #01) and was interviewed at the CCRB on November 7, 2019. Sergeant King was interviewed at the CCRB on January 9, 2020. Police Officer Vasquez was interviewed at the CCRB on January 24, 2020. Police Officer Hieronymi was interviewed at the CCRB on February 27, 2020. Police Officer Distelhurst was interviewed at the CCRB on March 12, 2020.

It is undisputed that § 87(2)(b) exited a Lyft taxi in front of § 87(2)(b) wearing a small satchel across his body that contained multiple plastic bags of marijuana. Sergeant King and Police Officers Vasquez and Hieronymi approached § 87(2)(b). No officer talked to the Lyft driver at any point.

§ 87(2)(b) testified that he had not smoked marijuana on the day of the incident, nor had he smoked the marijuana that was in his satchel. The satchel was zipped closed, which contained the odor of the marijuana.

All four interviewed officers testified that at the time of the incident, the 47th Precinct was experiencing a pattern of robberies by Lyft or Uber passengers against their drivers. These robberies could involve the perpetrator wielding a gun or knife, threatening violence, and/or using the driver's phone to siphon money into their own bank account. All the officers knew that the car § 87(2)(b) eventually exited was a taxi because of the TLC license plate and/or decal. Police Officers Vasquez and Hieronymi further stated that the cab idled for approximately 30 seconds, which raised their suspicion that criminal activity was afoot because the 47th Precinct is a high-crime area.

Police Officer Vasquez cited two factors that initially raised his suspicion that § 87(2)(b) had committed, was committing, or was going to commit a robbery: that the Lyft was parked for 30 seconds, and that § 87(2)(b) made hand gestures. Police Officer Vasquez described these gestures as open palms moving back and forth toward the cab driver. Though he initially stated these gestures were indicative of possible criminal activity, he later described the gestures as commonplace when someone is having a conversation. Police Officer Vasquez also initially stated that the cab driver did not appear to be distressed, then later that he could not see the driver's face or body. When asked whether the situation seemed threatening, Police Officer Vasquez did not answer, and merely stated that he wanted to conduct a "cab check" because of the length of time the cab idled without § 87(2)(b) exiting.

Surveillance footage from § 87(2)(b) shows that the taxi pulls up and stops at 10 seconds into the recording (Board Review #03). At 19 seconds, the rear driver side door opens and § 87(2)(b) steps out. The police vehicle approaches in the background driving in the opposite direction. As § 87(2)(b) begins to walk behind the taxi toward the sidewalk approximately 10 seconds later, the police vehicle makes a U-turn and pulls up directly behind the taxi. § 87(2)(b)'s attention is quickly drawn to the police vehicle and he walks to the driver side door. Sergeant King and Police Officers Vasquez and Hieronymi exit their vehicle and begin surrounding § 87(2)(b) after approximately 20 seconds. No officer approaches the taxi at any point during the stop. The taxi drives away approximately one minute after § 87(2)(b) is stopped.

§ 87(2)(g)

Police Officer Vasquez also testified that as soon as § 87(2)(b) opened the door of the cab, he smelled marijuana coming from § 87(2)(b)'s person. He believed the odor also came from the cab because there were no other cars or people in the area at the time. Police Officer Vasquez believed marijuana had just been smoked in the cab. He believed § 87(2)(b) may have been high, even though § 87(2)(b) did not exhibit any characteristics, other than odor, that normally suggests to Police Officer Vasquez that an individual is high. Police Officers Hieronymi and Distelhurst also stated that § 87(2)(b) smelled like marijuana.

Before referencing the aforementioned robbery pattern, Sergeant King initially testified that nothing about § 87(2)(b) caught his attention that led to the stop. Later, he testified that he believed he observed § 87(2)(b) walking "back and forth" between the Lyft and the sidewalk, which caught his attention given the pattern of taxi-involved robberies in the area. Sergeant King believed this

behavior may have been indicative of § 87(2)(b)'s intention to rob the taxi.

After viewing the surveillance footage described previously, Sergeant King stated that he believed he confused the incident with another interaction he had had. He clarified that he actually did not remember seeing § 87(2)(b) walk back and forth from the Lyft to the sidewalk, and that this interaction was the first time he saw § 87(2)(b) that day. Sergeant King did not offer another reason that he and his partners stopped § 87(2)(b).

§ 87(2)(g)

According to *People v. De Bour*, 40 N.Y.2d 210 [1976], an officer may forcibly stop and detain a person if the officer has reasonable suspicion that the person has committed, is committing or is about to commit a felony or misdemeanor (Board Review #04). New York State Penal Law §221.10 states that a person is guilty of criminal possession of marijuana in the fifth degree when he possesses marijuana in a public place, and such marijuana is burning or open to public view, or he possesses marijuana weighing more than 25 grams (Board Review #05).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be **substantiated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be **substantiated**.

Allegation C: Abuse of Authority- Police Officer Jonathan Vasquez frisked § 87(2)(b)

Allegation D: Abuse of Authority- Police Officer Jonathan Vasquez searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) it is uncontested that Police Officer Vasquez frisked § 87(2)(b)'s jacket pockets and front pants pockets and searched his bag.

§ 87(2)(b) testified that he did not tell the officers that he possessed marijuana. Before Police Officer Vasquez mentioned marijuana at all, he first unzipped § 87(2)(b)'s bag and then said he smelled marijuana. Police Officer Vasquez looked through the bag but did not take anything out. He then frisked § 87(2)(b) after searching the bag. Police Officer Vasquez then went inside his jacket pockets and front pants pockets.

Police Officer Vasquez testified that after the officers surrounded § 87(2)(b) he asked § 87(2)(b) if he had marijuana on him, and § 87(2)(b) said, "Yes." He then asked § 87(2)(b) if he could frisk him and if he had weapons, because "when you're stopping somebody, and he has drugs on him, usually drugs and weapons coincide with each other. And we're the police, we can do that." § 87(2)(b) replied that Police Officer Vasquez could frisk him, but that he only had weed. According to Police Officer Vasquez, § 87(2)(b) did not make any gestures that suggested he was concealing a weapon. Police Officer Vasquez did not remember observing any bulges on § 87(2)(b)'s person that suggested he was carrying a weapon. There was nothing about § 87(2)(b)'s physical demeanor that suggested to Police Officer Vasquez that he was concealing a weapon. Other than § 87(2)(b)'s admittance of marijuana possession, the only reason Police Officer Vasquez believed § 87(2)(b) could have had a knife or a gun was because the robberies in the aforementioned pattern sometimes included a knife or a gun. After frisking § 87(2)(b) and feeling no evidence of a weapon on his person, Police Officer Vasquez searched § 87(2)(b)'s bag and found small clear Ziploc bags containing marijuana, but he could not recall what quantity.

Police Officer Vasquez did not remember searching § 87(2)(b)'s pockets. He also testified that the frisk of § 87(2)(b) revealed no evidence that he may have been concealing a weapon. Sergeant King did not believe § 87(2)(b) was searched at any point on his person or in his bag. Police Officer Hieronymi initially testified that, immediately after § 87(2)(b) said he had weed on him, one of the officers who he could not recall searched either § 87(2)(b) or his bag. Later, he stated that he could not remember whether § 87(2)(b)'s body was frisked or searched, nor whether any officer went into § 87(2)(b)'s pockets to look for the weed. In short, no officer was certain that § 87(2)(b)'s body was not searched.

The surveillance footage shows Police Officer Vasquez standing very close to and behind § 87(2)(b) but is too far away to definitively show what Police Officer Vasquez does with his hands (Board Review #03). Similarly, Sergeant King's BWC footage shows Police Officer Vasquez shining a flashlight downward next to § 87(2)(b)'s body and then standing directly behind § 87(2)(b) but never shows a clear view of Police Officer Vasquez's hands (Board Review #08). No officer questioned about Police Officer Vasquez's hand motions in the BWC footage was able to identify exactly what he was doing.

§ 87(2)(g)

§ 87(2)(g)

According to *People v. De Bour*, 40 N.Y.2d 210 [1976] the common-law right to inquire is activated by a founded suspicion that criminal activity is afoot and permits a police officer to interfere with a citizen to the extent necessary to gain explanatory information. An officer may frisk the individual if the officer reasonably suspects that he is in danger of physical injury by virtue of the detainee being armed (Board Review #04). Patrol Guide Procedure 212-11 further prohibits an officer from frisking and searching an individual's bag, absent probable cause, unless they have reason to believe the person is armed and dangerous and the bag is within their reach. Patrol Guide Procedure 212-11 permits an officer to enter an individual's pockets "to remove an object that the member felt during a frisk and reasonably suspects is a weapon or dangerous instrument" (Board Review #07). A frisk cannot be conducted to "locate the evidence of a crime, such as drugs."

The procedure also states that when an officer requests an individual's consent to search, the consent is only valid if it is freely and voluntarily given (Board Review #07). According to *People v. Gonzalez*, 39 N.Y.2d 122 [1976], "consent to search is voluntary when it is a true act of the will, an unequivocal product of an essentially free, and unconstrained choice. Voluntariness is incompatible with official coercion, actual or implicit, overt or subtle" (Board Review #18). *Gonzalez* states that the validity of the consent given by an individual in custody or under arrest is weakened when they are confronted by a large number of police officers.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations C and D** be **substantiated**.

Allegation E: Discourtesy- Police Officer Andrew Distelhurst spoke discourteously to

§ 87(2)(b)

It is undisputed that Police Officer Distelhurst said the word "fuck" to § 87(2)(b) § 87(2)(b) was cooperative and calm during the entire interaction that lasted approximately two minutes.

Sergeant King's BWC footage shows Police Officer Distelhurst next to § 87(2)(b) as Police Officer Vasquez searches his bag (Board Review #08). § 87(2)(b) says he is going home, and Police Officer Distelhurst responds, "It doesn't matter where you're goin', you could be coming from fucking wherever, you're still in the wrong, bro, correct?"

Police Officer Distelhurst stated that his use of "fucking" was not directed at § 87(2)(b). Police Officer Distelhurst suggested that he used the word casually and to ensure that § 87(2)(b) was compliant, even though § 87(2)(b) was not acting noncompliant.

According to DCT Case No. 2015-15012, officers are to behave professionally and respectfully towards members of the public and avoid the use of discourteous language; however, officers' use of profanities during stressful street encounters do not constitute misconduct (Board Review #22).

§ 87(2)(g)

It is therefore recommended that **Allegation E** be **substantiated**.

Allegation F: Abuse of Authority- Sergeant Robert King failed to provide a business card to

§ 87(2)(b)

Allegation G: Abuse of Authority- Police Officer Jonathan Vasquez failed to provide a business card to § 87(2)(b)

§ 87(2)(b) stated that he did not receive a business card from any officer.

Police Officer Vasquez testified that he did not give § 87(2)(b) a business card because he did not ask for one, and because the possession of marijuana was merely a violation for which the officers warned and admonished him. Sergeant King did not know if any other officer offered § 87(2)(b) a business card.

Sergeant King's BWC footage shows the officers releasing § 87(2)(b) without offering § 87(2)(b) business cards (Board Review #08).

§ 87(2)(g)

According to NYC Administrative Code 14-174, officers are instructed to offer an individual a Right to Know Act Business card if they are stopped and searched and no arrest is made or summons is issued (Board Review #20).

§ 87(2)(g)

it is recommended that **Allegations F and G** be **substantiated**.

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which both § 87(2)(b) and § 87(2)(b) have been parties (Board Review #15, #16).
- Sergeant King has been a member-of-service for 7 years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- Police Officer Vasquez has been a member-of-service for 8 years and has been a subject in three CCRB complaints and 10 allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Hieronymi has been a member-of-service for 5 years and has been a subject in two CCRB complaints and 12 allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Distelhurst has been a member-of-service for 4 years and has been a subject in three CCRB complaints and 12 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation for this complaint § 87(2)(b)
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming “emotional distress and punitive damages” and seeking \$10,000 as redress (Board Review #21).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 2

Investigator: Esme Trontz Inv. Esme Trontz 04/06/2020
Signature Print Title & Name Date

Squad Leader: Alexander Opoku-Agyemang IM Alexander Opoku-Agyemang 4/14/2020
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date